

		and that the debtor expressly or impliedly promised to pay to the creditor the amount thus determined to be owing. (<i>Id.</i>) Plaintiff did not allege sufficient facts to state this cause of action. Plaintiff alleges Plaintiff invoiced amounts to Defendant regarding vehicles Plaintiff towed and stored, and that Defendant accepted the amounts; however, there is no allegation that Defendant acknowledged Defendant was responsible for paying the amount (i.e. that Defendant was the debtor). Plaintiff alleges Defendant agreed to pay the amounts pursuant to the terms of the agreement. (FAC, ¶¶ 37-40.) However, as discussed above, the agreement does not include any express agreement by Defendant to pay. Rather, the agreement expressly provides Defendant is not responsible for payment for services Plaintiff provides under the agreement. (<i>Id.</i>, Exhibit 1, Attachment A, Section 18.2.) In addition, although Plaintiff alleges there is an implied agreement to pay, Plaintiff does not allege facts to support such an implied agreement, especially in light of section 18.2 in the attachment to the agreement. Plaintiff did not allege sufficient facts to show the relationship of a debtor and creditor. Accordingly, the demurrer is sustained. Although Plaintiff requests leave to amend, Plaintiff did not make any showing that Plaintiff is able to properly amend this cause of action to state a cause of action for account stated. Accordingly, Plaintiff's request for leave to amend is denied. In light of this ruling, the Case Management Conference is vacated. Defendant shall give notice.
107	2024-01444402 Orona vs. Efficient Builders Corp.	1. Motion to Compel Arbitrations 2. Review Hearing The unopposed motion by Defendant Solar Mosaic LLC ("Mosaic") for an order compelling arbitration and staying this action as to Mosaic is granted. The action as to Mosaic is stayed. (Code Civ. Proc., § 1281.4.) The Court sets an ADR Review Hearing for July 26, 2027 at 10:00 a.m. in Department C27. Should Plaintiff appear, Plaintiff should be prepared to address the status of service on Defendant Efficient Builders Corp. Should Plaintiff not appear, the Court sets an Order to Show Cause as to why Defendant Efficient Builders Corp. should not be dismissed for January 4, 2027 at 10:00 a.m. in Department C27. In the event Plaintiff fails to serve Defendant Efficient Builders Corp. by this date, the Court will dismiss the action against such Defendant pursuant to CCP section 583.420(a)(1). Mosaic shall give notice of this ruling. The clerk is ordered to give notice of the OSC.
108	2025-01469228 Little vs. Volkswagen Group of America, Inc	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case The unopposed motion by Plaintiff Evevon Lynette Little ("Plaintiff") for attorneys' fees is granted. However, the Court denies the request for a multiplier. Additionally, the Court denies the request of \$4,000 in anticipated fees for reviewing the opposition, preparing a reply, and attending the hearing. The motion was not opposed.

		The Court awards the amount of \$13,591.00 in attorneys' fees. Defendant is ordered to pay Plaintiff the sum of \$13,591.00. The OSC re: dismissal is continued to December 21, 2026 at 10:00 a.m. in Department C27. Plaintiff is ordered to appear if this matter has not been dismissed. Plaintiff is ordered to give notice.
109	2025-01526045 Freeman vs. Massage Envy Franchising, LLC	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint Before the Court is Defendant Sheila Horowitz's Demurrer and Motion to strike parts of Plaintiff Brittany Freeman's Complaint. Per the Notice of Plaintiff's counsel, counsel for both parties met and conferred on 7/7/26 (ROA 91.) In the Notice, Counsel for Plaintiff indicates that as a result of the meet and confer effort, Plaintiff agrees to file a first amended complaint addressing the issues raised in the Motion. Thus, the Court finds the Demurrer and Motion to strike moot.
110	2025-01520411 Smith vs. Canyon Glen Community Association	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference Defendants Canyon Glen Community Association ("HOA"), Powerstone Property Management ("Manager"), and Rene Decker's ("Decker") Demurrer to Plaintiff James Smith's ("Plaintiff") First Amended Complaint is sustained in part and overruled in part. The demurrers to the second cause of action for breach of fiduciary duty and the fourth cause of action for gross negligence, as alleged against HOA, are overruled. The remainder of the demurrer is sustained with 15 days leave to amend. <u>1st COA for Breach of Contract & 3rd COA for Breach of the Implied Covenant</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.) The demurrer to the breach of contract claim is sustained, because Plaintiff has failed to allege facts showing how HOA materially breached the settlement agreement by sending the (second) check via mail approximately two months after the agreement was entered. Additionally, Plaintiff does not allege any damages from the delay of receiving the (second) check. Thus, the demurrer to the breach of contract claim is sustained. The demurrer to the breach of implied covenant claim is sustained, because it is premised entirely on the same breach alleged as a breach of contract. (See FAC at ¶ 86.) The breach of the implied covenant must involve "something beyond breach of the contractual duty itself." (<i>Tilbury Constructors, Inc. v. State Comp. Ins. Fund</i> (2006) 137 Cal.App.4th 466, 474; see <i>Howard v. American National Fire Ins. Co.</i> (2010) 187 Cal.App.4th 498, 528.) The demurrer to both claims are sustained with leave to amend.